

III Essay Type Questions

12. What is meant by discrimination? Explain some of the key forms of discrimination. [Ans: 2:03:1 + 2:03:3]
13. Discuss drug dependency among children, stating the predictive risk factors and protective factors of drug dependency in children. [Ans: 2:04 + 2:04:1 + 2:04:3 + 2:04:4]
14. Discuss the different forms of 'online child abuse'. [Ans: 2:05]
15. Discuss the suicidal tendency among children with causative factors and preventive measures. [Ans: 2:06]
16. Discuss the factors leading to vulnerability of children to violence in Tamilnadu and the root causes for the vulnerability of children to violence. [Ans: 2:09:1 + 2:09:2]

UNIT - III

CHILD RIGHTS - LAWS, POLICIES AND INSTITUTIONS

3:00 Introduction

In order to effectively address the heinous crimes and sexual exploitation of children, the Central and State Governments enacted several laws and developed Policies for Child Protection. In this Unit, Juvenile delinquency, Juvenile Justice and Protection of Children Act 2015, Right to Free and Compulsory Education Act 2009, The Protection of Children from Sexual Offences Act (POCSO) 2012, The Prohibition of Child Marriage Act 2006, Child Labour (Prohibition and Regulation) Act 1986, National and State Policies for Child Protection, Suppression of Immoral Traffic in Women and Girls Act 1956 (SITA), Child Protection System in India, The United Nations (UN) Human Rights Council, UN Committee on the Rights of Children and Special Rapporteurs on issues related to children are taken up for elaborate discussion.

3:01 Juvenile Delinquency

3:01:1 Meaning of Juvenile Delinquency

Severe antisocial behaviour of children and adolescents is referred as 'Delinquency'. Adults indulging in such antisocial behaviour are branded as 'criminals'. The three categories 'Problem children', 'Delinquents' and 'criminals' differ very little. A child stealing the pen or book of his classmates is a problem child, the same child, if indulges in shop lifting he is referred to as a delinquent, if an adult is involved in stealing or looting, he is considered by the society as a criminal.

In relation to juvenile delinquency, we cannot consider only age as the determining factor, sometimes the seriousness of the crime also plays an important role, that is, a boy aged between 7 and 16 and girls aged between 7 and 18 years commits a crime which is punishable by death. If the punishment is life imprisonment, in that case we cannot consider them as juvenile delinquents, such as committing acts like looting, treason, deadly attack etc.

3:01:2 Definition of Juvenile Delinquency

"A delinquent is a minor, who has been apprehended for violating the law; his act may

range from stealing and destructiveness to sexual promiscuity".

"Delinquents are children below the age of 18, who indulge in such antisocial acts which if committed by adults are legally punishable" (Cyril Burt). Delinquents are not sent to jail for their crimes but referred to Borstal Reformatory schools.

3:01:3 Causes of Delinquency

Delinquency is a phenomenon of multiple causation. It is the result of various factors interacting with each other. These factors may be classified as :

1) Familial : Utter poverty, uncongenial home conditions, broken homes, single parent, unwanted children, regimentation in the name of enforcing discipline, parent's over-protection of children, denying children to develop the sense of personal property, no good role model in the family for the children to follow, absence of feeling of security for the growing children etc. are primary reasons for the maladjusted behaviour of children. These problem behaviours indicative of serious

inner mental conflicts, if left unresolved may lead to delinquency.

2) Environmental : Friendship with antisocial elements, bad recreational media like yellow journals, blue films etc. generate severe emotional disturbances in youths; families thrown to the street due to riots, wars etc. become breeding ground to delinquency.

3) School related factors : Absence of order and discipline in the school, harassment by greedy and power-hungry teachers, forcing the students to do beyond their capacities etc. sow the seeds of mental conflicts and consequent maladjusted behaviour.

4) Personal factors : Mental conflicts affect not all children; capacity to resolve mental conflicts depends upon one's intelligence and ability. Generally males are more prone to maladjustment and delinquency than the females. Perhaps this may be due to the fact that males are allowed to have more freedom in society than females and also exposed to the vagaries of the society.

As delinquency arises mainly due to the anti-social environment, it is looked upon as a social

disease. It is found more in urban cities where social relations are very low. Similarly urban slums with unhygienic surroundings serve as fertile breeding ground for delinquency. A delinquent receives encouragement and support from a small clique; though opposed by the large groups of law-abiding citizens, delinquents value the support and appreciation of their cliques and continue to indulge in antisocial activities. As parent's influence is minimal over the delinquents, they get out of their homes at an early age and start living independently and resort to unlawful activities.

3:01:4 Reforming the Delinquents

Juvenile Delinquents are separated from criminals and sent to 'Remand homes' or **Borstal schools** according to the serious nature of the crimes committed, life for constructive reeducation through therapeutic methods. Skill training, dramatics, social work and appreciation opportunities are all involved in such correctional treatment of delinquents.

After reformation, these youths should be provided with opportunities to live in healthy and congenial environment and not falling back to the

old environment becoming a prey to maladjusted behaviour. In this regard the movements like 'Boys Town' help a lot in rehabilitating the reformed youths.

Prevention of delinquency is the best rather than attempting to treat the delinquents .

- a) Arranging for education of the children coming from slums, offering financial help for education, distribution of free uniforms, reading and writing materials, noon meal etc, may mitigate the economic problems of poor children and attract them towards education.
- b) The school life should be joyous for every one, offering opportunities to develop different kinds of abilities, interests and skills through curricular and cocurricular programmes.
- c) Individual differences are to be recognized and education should be according to one's interest and ability.
- d) Civic bodies should arrange for 'youth clubs' so as to help the youths to spend their leisure time usefully
- e) Schools should give importance for discipline

inducing programmes like scouts, N.C.C., citizen -ship training, religious and spiritual training etc.

- f) Faith in God provides a kind of psychological security to an individual when confronted with stress and mental conflicts.
- g) Young parents need to be prepared and educated for a healthy family life. They should be educated on child rearing practices.

3:02 Juvenile Justice (Care and Protection of Children) Act, 2015

Juvenile Justice (Care and Protection of Children) Act, 2015 has been passed by Lok Sabha on 7th May 2015 and by Rajya Sabha on 22nd December 2015. It came into effect from January 15, 2016. It replaced the Indian Juvenile Delinquency Law, Juvenile Justice (Care and Protection of Children) Act 2000, and allows for Juveniles in 'conflict with Law in the age group of 16–18, involved in Heinous Offences, to be tried as adults.

3:02:1 Key Provisions of the Act

There are 10 Chapters and 112 Sections in the Act

- ✦ There is a complete separation between children in need of care and protection, and the juveniles in conflict with the law.
- ✦ The juvenile/child has been defined as anyone who has not completed the age of 18 years.
- ✦ An attempt is made at decriminalizing the juvenile in conflict with the law through the introduction of the Juvenile Justice Board in place of the Juvenile Court.
- ✦ There is a provision for introducing a juvenile police unit and designation of at least one police officer in each station as a child-friendly officer.
- ✦ It expanded the definition of child in need of care and protection with additional categories like victims of armed conflict, civil commotion, or natural calamity.
- ✦ There is an exclusion of certain other categories like a child found begging, children who live in a brothel, and uncontrollable children.
- ✦ The child may be produced before the Committee by the police officer, public servants, Childline a registered voluntary organization, social worker, or public-spirited citizen.

- ✦ The focus of the new law is the restoration of the child which means restoration to the parents, adopted parents, and foster parents.
- ✦ The children's home or the state-run institutions for orphans shall be recognized as adoption agencies for security and placement of children.
- ✦ The children's home envisaged as a temporary stay during which schemes for adoption, foster care, sponsorship, and aftercare to be worked out.

3:02:2 Additional Features of the Act, 2015

The 2015 Act contains the following additional features:

- ✦ Section 3 of the Act spells out certain general principles of care and protection which are to be followed in its implementation.
- ✦ Section 2 of the Act is expanded with more definitions.
- ✦ The nomenclature used in the Act is further refined; the word 'arrest' is replaced by 'apprehension'. The word 'crime' is replaced by 'offence', etc.

- ✦ Under the Act, the offences committed by a juvenile are categorized into three classes

1. Petty Offences: It includes the offences for which maximum punishment under the Indian Penal Code or any other law is imprisonment up to three years.

2. Serious Offences: It includes the offences for which punishment under the Indian Penal Code or any other law is imprisonment between three to seven years.

3. Heinous Offences: It includes the offences for which minimum punishment under the Indian Penal Code or any other law is imprisonment of seven years or more.

- ✦ All the persons below the age of eighteen years were put in one class under the 2000 Act irrespective of the offence. While under the 2015 Act children in conflict with the law are put under two classes or groups
1. Those below 18 years of age in case of petty or serious offences and those below 16 years of age in case of heinous offences. This group is

to be dealt with by the Juvenile Justice Board constituted under this Act.

2. Those who have completed 16 years of age but are below 18 in case of heinous offences and such offenders can be treated as adults. They are to be kept in the place of safety until the age of 21 and thereafter may be sent to an adult jail to complete the remainder of the sentence.

3:02:3 Applicability of the Act

Section 1(4) of the Act deals with the applicability of the Act, which reads as follows:

Notwithstanding anything contained in any other law for the time being in force, the provisions of this Act shall apply to all matters concerning children in need of care and protection and children in conflict with law, including —

- (i) apprehension, detention, prosecution, penalty or imprisonment, rehabilitation and social re-integration of children in conflict with law;
- (ii) procedures and decisions or orders relating to rehabilitation, adoption, re-integration, and restoration of children in need of care and protection.

Thus Juvenile Justice Act has overriding effect on all other laws.

This Act has further been amended by the Juvenile Justice (Care and Protection of Children) Amendment Act, 2021 which has come into force from 1 September 2022.

3:03 Right to Free and Compulsory Education Act, 2009.

Eighty Sixth Amendment to the Indian Constitution has heralded the 'Right to Education Act' (2009), giving a legal frame work to Article 45 under the Directive Principles.

This Act, implemented from 1st April 2010, has seven chapters. Its salient features are given hereunder.

1. All children from age six to fourteen have a right to receive free and compulsory education.
2. Children who could not continue their studies (drop outs) are eligible to join the standard appropriate to their age, after getting appropriate special training.
3. Children have the right to leave one school and

join another school. This provision is applicable only within government and aided schools.

4. It is the responsibility of the government and local bodies to establish schools in the neighbourhoods of pupils which do not have schools, within three years of passing this Act.
5. Funding for implementing this Act is the responsibility of the Central and State Governments.
6. There should not be any discrimination against the disadvantaged groups and weaker sections of the society in the matter of admitting students in schools.
7. Every child should be assured of quality education.
8. Training of teachers, preparation of curriculum and subject content should be ready for implementing the Act within a time frame.
9. Demanding capitation fees is a criminal offence, punishable under the law.
10. No screening test either for the child or the parent should be conducted.

11. No certificate of birth to prove the age of pupils should be demanded at the time of admission.
12. No child should be held back or sent out before it completes its elementary education.
13. No child should be given corporal punishment or mental agony by the school.
14. No private school should be started without the approval of the government or the authorized agency.
15. Government permission and recognition should not be granted to schools which do not have the prescribed standards.
16. School management committee should be formed in such a way that three fourths of them are parents, and half of the members are women. This committee will prepare developmental plans for the school.
17. **Duties of teachers:** Regularity and punctuality in coming to school; completing portions of the syllabus within the allotted time; assessing the learning ability of every child and providing special instruction, if necessary and meeting parents and informing them about the progress of their wards in studies.

18. Student-teacher ratio is prescribed as follows:
 - i) **Primary Level (I to V):** Two teachers upto 60 children. Maximum 1:40 - This applies to schools which have a strength of more than 200 pupils. This will not include the head of the institution.
 - ii) **Middle School (Upper Primary - VI to VIII)** Science - 1, Mathematics - 1, Social Science - 1, Language - 1, is the minimum requirement of teachers and the total number of teachers should be equal to the total number of classes.

All schools should be provided with adequate classrooms, suitable for all seasons and other facilities.

3:04 The Protection of Children from Sexual Offences Act (POCSO), 2012

The Protection of Children from Sexual Offences Act 2012 (POCSO) came into force from 14th November, 2012. The Protection of Children from Sexual Offences Act, 2012 has been enacted to protect children from offences of sexual abuse and

exploitation and pornography and provides for establishment of Special Courts to try such offences. For the first time, a special law has been passed to address the issue of sexual offences against children.

3:04:1 The Salient Features of the Protection of Children from Sexual Offences Act, 2012

1. The Protection of Children from Sexual Offences Act, 2012 defines a child as any person below the age of 18 years and provides protection to all children under the age of 18 years from the offences of sexual assault, sexual harassment and pornography.
2. The Act provides for stringent punishments, which have been graded as per the gravity of the offence. The punishments range from simple to rigorous imprisonment of varying periods. There is also provision for fine, which is to be decided by the Court.
3. An offence is treated as "aggravated" when committed by a person in a position of trust or authority of child such as a member of security forces, police officer, public servant, etc.

4. Punishments for Offences covered in the Act are:
 - Penetrative Sexual Assault (Section 3) on a child – Not less than seven years which may extend to imprisonment for life, and fine (Section 4)
 - Aggravated Penetrative Sexual Assault (Section 5) – Not less than ten years which may extend to imprisonment for life, and fine (Section 6)
 - Sexual Assault (Section 7) i.e. sexual contact without penetration – Not less than three years which may extend to five years, and fine (Section 8)
 - Aggravated Sexual Assault (Section 9) by a person in authority – Not less than five years which may extend to seven years, and fine (Section 10)
 - Sexual Harassment of the Child (Section 11) – Three years and fine (Section 12)
 - Use of Child for Pornographic Purposes (Section 13) – Five years and fine and in the event of subsequent conviction, seven years and fine (Section 14 (1))
5. The Act provides for the establishment of Special Courts for trial of offences under the Act, keeping the best interest of the child as of paramount importance at every stage of the judicial process. The Act incorporates child friendly procedures for reporting, recording of evidence, investigation

and trial of offences. These include: • Recording the statement of the child at the residence of the child or at the place of his choice, preferably by a woman police officer not below the rank of sub-inspector • No child to be detained in the police station in the night for any reason. • Police officer not to be in uniform while recording the statement of the child • The statement of the child to be recorded as spoken by the child • Assistance of an interpreter or translator or an expert as per the need of the child • Assistance of special educator or any person familiar with the manner of communication of the child in case child is disabled • Medical examination of the child to be conducted in the presence of the parent of the child or any other person in whom the child has trust or confidence. • In case the victim is a girl child, the medical examination shall be conducted by a woman doctor. • Frequent breaks for the child during trial • Child not to be called repeatedly to testify • No aggressive questioning or character assassination of the child • In-camera trial of cases

6. The Act recognizes that the intent to commit an offence, even when unsuccessful for whatever

reason, needs to be penalized. The attempt to commit an offence under the Act has been made liable for punishment for upto half the punishment prescribed for the commission of the offence.

7. The Act also provides for punishment for abetment of the offence, which is the same as for the commission of the offence. The Act makes it mandatory to report commission of an offence and also the recording of complaint and failure to do so would make a person liable for punishment of imprisonment for six months or / and with fine.
8. For the more heinous offences of Penetrative Sexual Assault, Aggravated Penetrative Sexual Assault, Sexual Assault and Aggravated Sexual Assault, the burden of proof is shifted to the accused. This provision has been made keeping in view the greater vulnerability and innocence of children. At the same time, to prevent misuse of the law, punishment has been provided for making false complaint or providing false information with malicious intent. Such punishment has been kept relatively light (six months) to encourage reporting. If false

complaint is made against a child, punishment is higher (one year) (Section 22).

9. The media has been barred from disclosing the identity of the child without the permission of the Special Court. The punishment for breaching this provision by media may be from six months to one year (Section 23).
10. For speedy trial, the Act provides for the evidence of the child to be recorded within a period of 30 days. Also, the Special Court is to complete the trial within a period of one year, as far as possible (Section 35).
11. To provide for relief and rehabilitation of the child, as soon as the complaint is made to the Special Juvenile Police Unit (SJPU) or local police, these will make immediate arrangements to give the child, care and protection such as admitting the child into shelter home or to the nearest hospital within twenty-four hours of the report. The SJPU or the local police are also required to report the matter to the Child Welfare Committee within 24 hours of recording the complaint, for long term rehabilitation of the child.

12. The Act casts a duty on the Central and State Governments to spread awareness through media including the television, radio and the print media at regular intervals to make the general public, children as well as their parents and guardians aware of the provisions of this Act.
13. The National Commission for the Protection of Child Rights (NCPCR) and State Commissions for the Protection of Child Rights (SCPCR) have been made the designated authority to monitor the implementation of the Act.

3:05 The Prohibition of Child Marriage Act, 2006

This Act replaced the **Child Marriage Restraint Act, 1929** which was enacted during the British era.

The Prohibition of Child Marriage Act 2006 came into force on 1 November 2007 in **India**. It forbids child marriages, and protects and provides assistance to the victims of child marriages and enhance punishment for those who abet, promote or solemnize such marriage. This Act also calls for appointment of Child Marriage

Prohibition Officer for whole or a part of a State by the State government.

This Act consists of 21 sections. It extends all over India and renoncants (those who reject the local laws and accept French law) of the Union territory of Pondichery.

3:05:1 Salient Features of 'The Prohibition of-Child Marriage Act. 2006'

- ✦ The Prohibition of Child Marriage Act presently annuls the child marriages, between a boy of under 21 years and a girl under 18 years of age.
- ✦ It defines a child to mean a male below 21 years and female below 18 years.
- ✦ "Minor" is defined as a person who has not attained the age of majority as per the Majority Act.
- ✦ The legal status of Child Marriage is Voidable if so desired by one of the parties. However, if the consent is obtained by fraud, deceit or if the child is enticed away from his/her lawful guardians, and if the sole purpose is to use the child for

trafficking or other immoral purposes, marriage would be void.

- ✦ There is also a provision for maintenance of girl child. Husband is liable to pay maintenance in case he is a major. In case, the husband is also a minor, his parents would be liable to pay maintenance.
- ✦ It envisages preventing child marriage with punishments of rigorous imprisonment for two years and/ or fine of Rs. 1 lakh.
- ✦ The Act also provides for the appointment of Child Marriage Prohibition Officer whose duties are to prevent child marriages and spread awareness

3:05:2 Offences and Punishment Under this Act

1. Punishment for male adult: If an adult male who is above 18 years of age contracts child marriage, he shall be punishable with rigorous imprisonment for 2 years or with fine which may extend to one lakh rupees or both.
2. Punishment for solemnizing marriage: If a person performs, conducts, directs or abets any child

marriage, he shall be punishable with rigorous imprisonment for 2 years or with fine which may extend to one lakh rupees or both.

3. Punishment for promoting / permitting solemnization of marriage: Any person having charge of the child whether parent or guardian or any other person including member of organization or association of persons who does any act to promote the passing or permit child marriage or negligently fails to prevent it from being solemnized, including attending or participating such marriage, shall be punishable with rigorous imprisonment for 2 years or with fine which may extend to one lakh rupees or both.

Offence under this Act is cognizable and non-bailable.

Marriage will be null and void in the following circumstances

1. Where minor child is taken or enticed out of the keeping of legal guardian
2. By force compelled or by any deceitful means induced to go from any place

3. Is sold for purpose of marriage and go through a form of marriage or if the minor is married after which the minor is sold off or trafficked or used for immoral purpose

Such marriage shall be null and void.

3:05:3 Child marriage Prohibition Officers and their Duties

The government shall appoint Child marriage prohibition officers over the area specified in the official gazette. Their duties are:

1. To prevent child marriage by taking action.
2. To collect evidence for effective prosecution.
3. To advise the locals not to indulge in promoting or helping or allowing solemnization of child marriage.
4. To create awareness of the evil of such child marriage
5. To sensitize the community on the issue
6. To furnish periodical returns and statistics when the government may direct
7. Such other duties assigned by the Government.

The Child marriage prohibition officers are deemed to be public servant and no suit will lie on the action taken by the Child marriage prohibition officers in good faith.

3:06 Child Labour Prohibition and Regulation Act, 1986

There are a number of Acts which prohibit the employment of children below 14 years and 15 years in certain specified employments. However, there is no procedure laid down in any law for deciding in which employments, occupations or processes the employment of such children should be banned. There is also no law to regulate the working conditions of children in most of the employments where they are not prohibited from working and are working under exploitative conditions.

With the aim to – (i) ban the employment of children, i.e., those who have not completed their fourteenth year, in specified occupations and processes; (ii) lay down a procedure to decide modifications to the Schedule of banned occupations or processes; (iii) regulate the conditions of work of children in employments where they are not prohibited from working; (iv) lay down enhanced

penalties for employment of children in violation of the provisions of this Act, and other Acts which forbid the employment of children; (v) to obtain uniformity in the definition of "child" in the related laws – the Child Labour (Prohibition and Regulation) Act 1986 was passed by both the Houses of Parliament. It received the assent of the President on 23rd December, 1986 and came into force on 23-12-1986.

3:06:1 Salient Features of 'Child Labour Prohibition and Regulation, Act, 1986'

A child is defined as having not finished his 14th (fourteenth) year under the Child Labour Prohibition and Regulation Act, 1986. Part II of the legislation prevents children from working in any of the occupations mentioned in Part A of the Schedule, including domestic labour, dhabas (road-side food stalls), hotels, railway catering, construction work on or near railway tracks, plastics manufacturing, and automotive garages among others.

Children are also not allowed to work in sites where specific procedures are carried out, such as beedi making, tanning, soap manufacturing, brick kilns, and roof tile units, as mentioned in Part

B of the Schedule. The restrictions are not applicable to workshops where the occupier works with the assistance of his family or to schools recognised or assisted by the Government.

The main goal of the Child Labour (Prohibition and Regulation) Act of 1986 is to address a social concern by prohibiting the employment of children under the age of 14 in certain occupations and regulating the working conditions of children in occupations such as (i) railway passenger, goods, or mail transport (ii) beedi making (iii) carpet weaving (iv) match, explosives, and fire works manufacturing and (v) soap manufacturing.

The Government has also made it illegal for children to work in the following vocations or processes: (i) slaughterhouses/abattoirs (ii) hazardous procedures and risky operations, as described; (iii) printing, as defined; and (iv) cashew and cashew nut descaling and processing, as defined. In the electrical sector, (v) soldering procedures are used. The Act prevents children from working in 13 occupations and 51 procedures. The Fundamental Rights in the Indian Constitution in Article 24 under Right Against Exploitation also states the prohibition of child labour in industries.

The Act prohibits the employment of children under the age of 14. It expressly forbids all children under 14 from working in specific dangerous jobs or operations. It forbids the employment of minors in 16 activities and 65 processes that are deemed detrimental to the child's health and mind. The Act also governs industries in which children are permitted to work, and it imposes stiff consequences on employers that break the law, including monetary fines and prison sentences. The Act excludes family units and training centres from its coverage. A violation of the Act could result in a sentence of three months to one year in prison and a fine of Rs. 10,000 to Rs. 20,000.

The Child Labour Prohibition and Regulation Act, 1986, strives to eliminate all forms of child maltreatment in the workplace. The Act makes it illegal to employ children in specific jobs and processes. According to the Act, in order to protect workers from dangerous working circumstances, no youngster shall be permitted to work between 7 p.m. and 8 a.m., nor shall they be pushed to work overtime. Furthermore, no youngster shall labour for more than 3 hours without a one-hour break.

3:07 National and State Policies for Child Protection

3:07:1 National Policy for Child Protection

All children deserve a happy childhood and the opportunity to lead a dignified life safe from violence, exploitation, neglect, deprivation and discrimination. India is a young nation, with a child population of more than 472 million. Protection of this nearly 40% of the young population is not only a matter of their human rights but also an investment towards building a robust nation. The Constitution of India recognize children as equal right holder and grants highest priority for their protection and well-being. India is also signatory to the United Nations Convention on the Rights of the Child (UNCRC) and accordingly has a strong legal frame-work to protect children which include the Juvenile Justice (Care and Protection of Children) Act 2015; the Protection of Children from Sexual Offences Act 2012; Pre-Conception and Pre-Natal Diagnostic Techniques (PCPNDT) Act 1994; the Commission for Protection of Child Rights Act 2005; the Right of Children to Free and Compulsory Education Act, 2009; Prohibition of

Child Marriage Act, 2006; and Child Labour (Prohibition and Regulation) Amend-ment Act, 2016.

The current policy draws upon the safeguards provided under the Constitution of India, various child-centric legislation, international treaties as well as other existing policies for the protection and wellbeing of children. It aims at providing a safe and conducive environment for all children through the prevention and response to child abuse, exploitation and neglect. It provides a frame-work for all institution, and organization (including corporate and media houses), government or private sector to understand their responsibilities in relation to safeguarding/ protecting children and promoting the welfare of children, individually and collectively.

Vision: All Children in India Stay Safe and Feel Secure in All Settings and Circumstances

3:07:1:01 Guidelines for Organizations, Institutions and Establishments (Including Media)

- ✦ The child Protection Policy is applicable to Institutions/Organizations.

- ✦ All institutions and organizations should develop a child protection policy and code of conduct for employees in line with the national guidelines and various legislations for protection and welfare of children and display it appropriately
- ✦ All employees/ contractual workers must sign the declaration for child protection and agree to abide by it (as provided in Annexure 1).
- ✦ It should be based on the premise of Zero tolerance of child abuse and exploitation.
- ✦ The code of conduct for employees/contractual workers must lay down that they should always treat children with empathy and respect, regardless of race, colour, gender, sexuality, language, religion, political or other opinion, national, ethnic or social origin, property, disability, birth or other status.
- ✦ Always listen to children and respect their views.
- ✦ The code of conduct must lay down that staff members must never:
 - use language or behaviour towards children that is inappropriate, harassing, abusive, sexually provocative, demeaning or culturally inappropriate.

- develop or induce or support in any way physical/sexual relationships with children.
- develop any form of relationship or arrangement with children which could in any way be deemed to be exploitative or abusive
- place a child at risk of abuse or exploitation, or be aware of these and not report it or not do anything about it.
- ✦ All organization and institution should designate responsibility to a specific member/members of staff for ensuring that procedures and arrangements are in place within the organisation to protect children and report any abuse, exploitation or neglect, in line with the guidelines and existing laws.
- ✦ The CHILDLINE 1098 and contact details of designated officer for child protection must be displayed appropriately.
- ✦ Organize orientation programmes on child protection and various legislations related to it and make it mandatory for all employees at all levels (including contractual workers).

- ✦ Ensure any individual in the organization/institution who abuses or exploits children or violates any section of this policy should be appropriately punished as per law (Refer to Annexure 2).
- ✦ Any individual who suspects physical, sexual or emotional abuse including online abuse of children, circulation of child sexual abuse materials, child marriage, child labour, child trafficking, maltreatment of children, discrimination against child on account of gender, caste, religion, language, disability or any other; abandonment or neglect of a child; must report the incidence to CHILDLINE 1098, police or Child Welfare Committee. Identity of the informant is to be protected and will not be made public.
- ✦ In cases of emergency, where a child appears to be at immediate and serious risk, provide accurate information about child's location, details of the circumstances and other information to help in the process of rescue. In case the child requires immediate medical attention before appropriate authorities arrive, help the child in the best possible way, but update

CHILDLINE 1098 and police regarding the situation and whereabouts of the child.

- ✦ Always wait for the appropriate authority (CHILDLINE 1098, police or Child Welfare Committee members) for taking action or act on their advice and guidance.
- ✦ Professionals who provide services to children (teachers, counsellors, doctors/ other health workers and others) must follow child protection policy for reporting and taking action if they become concerned about a child's safety and welfare.
- ✦ Be aware of the care and support services for children like CHILDLINE 1098, Special Juvenile Police Unit, Child Welfare Committees, child care institutions, one-stop centres, drug rehabilitation centres, hospitals, mental health care providers and other such services for children.
- ✦ Corporate houses and industries must establish and strengthen monitoring mechanisms to ensure that industry/subsidiaries are not using child labour in any form.
- ✦ Institutions and organizations working directly with children must ensure stringent background

check (including police verification) of all employees - regular or contractual; volunteers and others who may come in contact with children.

- ✦ Institutions and organizations working directly with children must train all employees on child rights, provisions of POCSO Act, 2012; JJ Act 2015 and other legislations for children and ensure that corporal punishment, bullying and any other form of abuse is prevented. All employees should be familiar with signs and behaviours that may be indicative of child abuse/exploitation or neglect.
- ✦ Medical establishments (hospitals and clinics), doctors and health workers cannot refuse treatment or discriminate on the basis of gender, sexual orientation, disability, caste, religion, tribe, language, marital status, occupation, political belief, or other status. Refusal of medical care to survivors/victims of sexual violence and acid attack amounts to an offence under Section 166B of the Indian Penal Code read with Section 357C of the Code of Criminal Procedure.
- ✦ Institutions and organizations working directly

with children must develop age-appropriate modules and materials for orientating children on child abuse, online safety and services available for them.

- ✦ Organizations which undertake research and collect data on children, directly from children or indirectly from parents/community must ensure that children are not harmed or traumatized in any way during the process. All research staff must be trained on ethical practices and child friendly procedures.
- ✦ Creches/ mobile crèches for employee's children including those on daily wages/contractual basis, if the number of employees is fifty or above; otherwise appropriate space and facility for baby care to be provided for mothers with infants.
- ✦ Child friendly zones must be developed in all places for public dealing.
- ✦ Safe spaces for mothers to keep their infants

3:07:2 Tamil Nadu State Policy for Child Protection

Child welfare and development are paramount concerns for any society, and the Government of

Tamil Nadu has taken significant strides in this direction with its comprehensive **Tamil Nadu State Policy for Children (TNSPC) of 2021**. While the state has made commendable progress in various indicators, **it acknowledges that certain challenges persist, such as child marriage, child labour, crimes against children, and juvenile delinquency**. This policy is a crucial step towards addressing these issues and ensuring the well-being and safety of Tamil Nadu's children.

The TNSPC is firmly rooted in international standards, deriving its guiding principles from the **UN Convention on the Rights of the Child (UNCRC)**, the National Policy for Children 2013, the National Plan of Action 2016, and the UN's 2030 Agenda for Sustainable Development. This comprehensive approach underscores the state's commitment to safeguarding children's rights and well-being.

The overarching vision of the TNSPC is to ensure holistic development within a secure environment for every child, **empowering them to reach their full potential and achieve the Sustainable Development Goals (SDGs)**.

With a mission to protect children from violence, abuse, and exploitation, the TNSPC aims to provide access to quality healthcare and education, enable children to express their opinions, and uphold the principle of "Leave no one behind."

Aligned with the UNCRC, the TNSPC emphasizes a multifaceted approach encompassing **survival, growth, development, protection, and participation**. By addressing these dimensions, the policy endeavours to create a comprehensive framework for enhancing children's lives.

Life, Survival, Health, and Nutrition

The state recognizes the need for equitable access to life, survival, health, and nutrition for all children. The policy outlines a range of strategic approaches to achieve these goals, including:

- Prioritizing investment in the first 1000 days of a child's life to ensure a healthier future.
- Addressing key determinants of child mortality and morbidity, such as health, nutrition, water, and sanitation.

- Strengthening public health systems to provide quality care for maternal, newborn, and child health.
- Ensuring universal access to Early Childhood Care and Development through Anganwadis.
- Preventing HIV infections and providing appropriate care for infected children.
- Promoting behaviour change to improve child care practices.
- Timely interventions for preventing disabilities and offering early detection and treatment.

Education

The TNSPC underscores the right to education for all children. The policy is designed to:

- Facilitate holistic development, emphasizing strengths and empowerment.
- Ensure safe and secure learning environments.
- Provide access to formal schooling, especially for 5-year-olds.
- Make quality secondary education affordable and accessible.

- Incorporate gender equality, life skills, and value education.
- Promote digital education in a safe and age-appropriate manner.

Protection

Protection of Children from abuse, violence, and exploitation is a paramount goal of the TNSPC. The policy outlines measures to:

- ✦ Strengthen community-based mechanisms for child protection.
- ✦ Implement "Zero Tolerance" for violence against children.
- ✦ Introduce child protection and safeguarding policies in local bodies and schools.
- ✦ Strengthen child protection systems and alternative care.
- ✦ Build disaster and emergency management systems for child protection.

Participation

The TNSPC recognizes children's capacity to form views and participate in matters concerning them. To this end, the policy aims to:

- Inform children of their rights and provide opportunities for skill development.
- Promote platforms for children to express opinions and needs.
- Create opportunities for children to engage in relevant issues.
- Strengthen community-based organizations and partnerships.

3:07:3 Significance of Tamil Nadu State Policy for Children, 2021

The Tamil Nadu State Policy for Children (TNSPC) of 2021 holds immense significance as a comprehensive and forward-looking framework aimed at ensuring the holistic well-being and development of the state's children. Its importance is underscored by the following key factors:

- ◆ **Holistic Development:** The TNSPC adopts a holistic approach that encompasses various aspects of a child's life, including health, education, protection, and participation. This comprehensive strategy recognizes that children's well-being is a result of the interplay between these dimensions.

- ◆ **Rights-Based Approach:** The policy is rooted in the UN Convention on the Rights of the Child (UNCRC), affirming the inherent rights of every child. By translating these rights into actionable measures, the TNSPC provides a robust framework for upholding and safeguarding children's rights.
- ◆ **Sustainable Development Goals (SDGs):** The TNSPC aligns with the SDGs, particularly Goal 4 (Quality Education) and Goal 16 (Peace, Justice, and Strong Institutions), highlighting its commitment to ensuring quality education, child protection, and inclusion.
- ◆ **Community-Centric Approach:** The policy emphasizes the importance of community-based mechanisms for child protection, participation, and well-being. This approach recognizes the critical role of families, local bodies, and civil society organizations in creating a safe and nurturing environment for children.
- ◆ **Prevention and Intervention:** By addressing issues such as child marriage, child labour,

abuse, and neglect, the TNSPC takes a proactive stance towards preventing harm to children. Simultaneously, it outlines interventions and support mechanisms to address existing challenges effectively.

3:08 Vishaka Committee

3:08:1 Origin of Vishaka Committee

Sexual harassment at a workplace is undoubtedly a violation of women's right to equality, life and liberty. It does not only create an impediment in the way of women's participation in constructive activities at workplaces but does render the work places, hostile and insecure for them as well. The **Vishaka case or Vishaka and others Vs State of Rajasthan and others (1997)** is a land mark judgement of our Supreme Court in this connection. It stated that Sexual Harassment in the work place is a serious breach of fundamental rights under Articles 14, 19 and 21. The Court has issued in that case a set of guidelines known as **Vishaka Guidelines** to prevent sexual harassment in workplace.

3:08:2 Background of Vishaka Case

The **Vishakha case** is named after a non-governmental organization (NGO) called

Vishakha. The NGO works for women's rights in Rajasthan.

Bhanwari Devi was working as a community worker to promote women's empowerment and development.

She used to raise awareness about anti dowry and child marriage campaigns.

In 1992, she was gang-raped by influential members of a rural village in Rajasthan after stopping a child marriage in a Gujjar family.

Initially, due to lack of evidence the accused were acquitted by the local court.

Bhanwari Devi and others filed a writ petition with the Supreme Court of India under the Vishakha platform.

The filed Public Interest Litigation (PIL) sought to address the issue of sexual harassment of women in the workplace.

A three-judge bench of the Supreme Court addressed the case and issued Vishakha guidelines in its judgement delivered on 13th August, 1997.

The SC bench comprised Chief Justice Verma, Justice Sujata V. Manohar, and Justice B.N. Kripal.

3:08:3 Important Points in the Vishaka Guidelines

In the absence of enacted law to provide for the effective enforcement of basic human right of gender equality and guarantee against sexual harassment and abuse at workplaces, Indian Supreme Court, with the power available to it under Article 32 of the Constitution, has delivered its judgement containing guidelines under the following three heads.

1. Duty of the Employer or other responsible persons in the workplace.
2. Definition of sexual harassment.
3. Preventive measures.

3:08:3:01 Duty of the Employer or other Responsible Persons in Work Places

It shall be the duty of the employer or other responsible persons in work places or other institutions to prevent or deter the commission of

acts of sexual harassment and to provide the procedures for the resolution, settlement or prosecution of acts of sexual harassment by taking all steps required.

3:08:3:02 Definition of Sexual Harassment

Sexual harassment includes such unwelcome sexually determined behaviour (whether directly or by implication) as:

- a) Physical contact and advances;
- b) a demand or request for sexual favours;
- c) sexually coloured remarks
- d) showing pronography
- e) any other unwelcome physical, verbal or non-verbal conduct of sexual nature.

3:08:3:03 Preventive Steps

All employers or persons in-charge of work place whether in the public or private sector should take the following steps to prevent sexual harassment.

- 1) Sexual harassment at the work place as defined above should be notified, published and circulated in appropriate ways.

- 2) The Rules / Regulations of Government and Public Sector bodies relating to conduct and discipline should include rules / regulations prohibiting sexual harassment and provide for appropriate penalties in such rules against the offender.
- 3) As regards private employers steps should be taken to include the aforesaid prohibitions in the standing orders under the Industrial Employment (Standing Orders) Act, 1946.
- 4) **Criminal Proceedings** : Where such conduct amounts to a specific offence under the Indian Penal Code or under any other law, the employer shall initiate appropriate action in accordance with law, by making a complaint with appropriate authority.
- 5) **Disciplinary Action** : Where such conduct amounts to misconduct in employment as defined by the relevant service rules, appropriate disciplinary action should be initiated by the employer in accordance with the rules.
- 6) **Compliant Mechanism** : Whether or not such conduct constitutes an offence under law or a

breach of the service rules, an appropriate complaint mechanism should be created in the employer's organisation for redress of the complaint made by the victim. Such complaint mechanism should ensure time bound treatment of complaints.

- 7) **Complaints Committee** : The complaint mechanism referred to in (6) above, should be adequate to provide, a Complaints Committee, a special counsellor or other support service, including the maintenance of confidentiality.

The Committee should be headed by a woman and not less than half of its members should be women. Further, to prevent the possibility of any undue pressure or influence from senior levels, such Complaints Committee should involve a third party, either NGO or any other body that is familiar with the issue of sexual harassment.

- 8) The Central / State Governments are directed to adopt suitable measures including legislation to ensure that the guidelines laid down in this order are also observed by the employers in Private Sector.

- 9) These guidelines will not prejudice any rights available under the Protection of Human Rights Act, 1993.

The Supreme Court directed that above guidelines and norms are to be observed in all work places and are binding and enforceable in law, until suitable legislation is enacted in this field.

3:08:4 The Objectives of Vishaka Committee

Almost all the organisations / institutions / establishments, both in the public and private sectors have constituted the Vishaka Committee in their work place, with an object to promote the principle of gender equality enshrined in the Indian Constitution, as a consequence of Vishaka Case Judgement in the Supreme Court. In big establishments / organisations having numerous branches, in each unit a '**Vishaka Cell**' has been constituted. The objectives of these Vishaka Committees are as follows :

- ✦ to safeguard the rights of female staff / employees / students

- ✦ to maintain a healthy and safe environment for girls, female staff and employees
- ✦ to prevent any sexual invectives and abuses towards girls, female staff and employees.
- ✦ to provide a platform for listening to complaints regarding sexual harassment.
- ✦ to obtain evidence, and take appropriate action against the guilty.
- ✦ to prevent any kind of sexual harassment by using secret monitoring service like fixing vigilance cameras.
- ✦ to create a setting of gender justice in the work place where men and women work together with a sense of personal security and dignity.
- ✦ to augment the self-worth and confidence in the female staff and employees.
- ✦ to keep a vigilant eye on the entire campus / premises / workplace.

3:08:5 Responsibilities of Vishaka Committee

- ✦ The Committee shall decide whether the facts contained in the complaint make out a case

of "sexual harassment" in the light of the definition contained in the Policy.

- ✦ The Committee shall look into the truth of the allegations contained in the complaint.
- ✦ The Committee shall look into the truth of any allegation of retaliation against / victimization of the complainant or any other person assisting her as a result of such complaint having been made or such assistance having been offered.
- ✦ The Committee shall recommend the penalties / action to be taken against any person found guilty of having sexually harassed the complainant, up to and including termination, to the Management.
- ✦ The Committee shall recommend the penalties / action to be taken against any person found guilty of having retaliated against / victimized the complainant or any other person assisting her as a result of such complaint having been made or such assistance having been offered.
- ✦ The Committee shall recommend appropriate psychological, emotional and physical support

(counseling, security and other assistance) for the victim, to the Management.

- ✦ The Committee shall monitor the follow-up action to be taken by the Management on the receipt of the Report of the Committee.

3:09 **Suppression of Immoral Traffic in Women and Girls Act, 1956**

Suppression of Immoral Traffic in Women and Girls Act was enacted in pursuance of the International Convention signed at New York on the 9th day of May, 1950, for the suppression of immoral traffic in women and girls.

The **Immoral Traffic (Prevention) Act, 1956 (ITPA)**, is the premier legislation to prevent trafficking for commercial sexual exploitation. The ITP Act, then called the **All India Suppression of Immoral Traffic Act (SITA)**, was amended to the current law, punishing any person found guilty of involving a child or woman in any such activity and may be imprisoned for seven years or more.

3:09:1 Salient Features of Suppression of Immoral Traffic (Prevention) Act, 1956

- ✦ The act aims to prevent the trafficking of women and girls. It curbs the immoral aspects of prostitution.
- ✦ It criminalizes various activities related to prostitution. This includes soliciting, running brothels, and living on the earnings of prostitution.
- ✦ The act provides for penalties and punishment for those involved in such activities.
- ✦ It also establishes protective measures for victims of trafficking.

It delineates the legal framework surrounding sex work. While the act itself **does not declare sex work illegal, it prohibits running brothels**. Engaging in prostitution is legally recognized, but soliciting people and luring them into sexual activities are considered illegal.

3:09:2 Definitions as per Section 2 of this Act

- a) "*brothel*" includes any house, room, or place or any portion of any house, room or place, which is used for purposes of prostitution for the gain of another person or for the mutual gain of two or more prostitutes;
- b) "*girl*" means a female who has not completed the age of twenty-one years;
- c) "*magistrate*" means a District Magistrate, a Sub-Divisional Magistrate, a Presidency Magistrate, or a Magistrate of the first class specially empowered by the State Government, by notification in the Official Gazette, to exercise jurisdiction under this Act;
- d) "*prescribed*" means prescribed by rules made under this Act;
- e) "*prostitute*" means a female who offers her body for promiscuous sexual intercourse for hire, whether in money or in kind;
- f) "*prostitution*" means the act of a female offering her body for promiscuous sexual intercourse for hire, whether in money or in kind;

g) "*protective home*" means an institution, by whatever name called, in which women and girls may be kept in pursuance of this Act and includes-

- i) a shelter where female undertrials may be kept in pursuance of this Act; and
- ii) a corrective institution in which women and girls rescued and detained under this Act may be imparted such training and instruction and subjected to such disciplinary and moral influences as are likely to conduce to their reformation and the prevention of offences under this Act;

h) "*public place*" means any place intended for use by, or accessible to, the public and includes any public conveyance;

i) "*special police officer*" means a police officer appointed by or on behalf of the State Government to be in charge of police duties within a specified area for the purpose of this Act;

j) "*woman*" means a female who has completed the age of twenty-one years

3:09:3 Punishments Under the Immoral Traffic Prevention Act

The Immoral Traffic Prevention Act's various penalties are listed in sections 3-9, 11, 18, 20, and 21. The following offenses are penalized under the act:

- ✦ Maintaining and utilizing the property as a brothel;
- ✦ Subsisting off the proceeds of prostitution;
- ✦ Pimping or otherwise soliciting for prostitution;
- ✦ Seducing a person in detention;
- ✦ Prostitution in public place; etc.

3:10 Child Protection System in India

The Institutional Mechanism for Child Protection System in India has been presented in the following page as a flow chart:

3:11 United Nations (UN) Human Rights Council

The Human Rights Council is the main intergovernmental body within the United Nations responsible for human rights. Established in 2006 by the General Assembly, it is responsible for strengthening the promotion and protection of human rights around the globe.

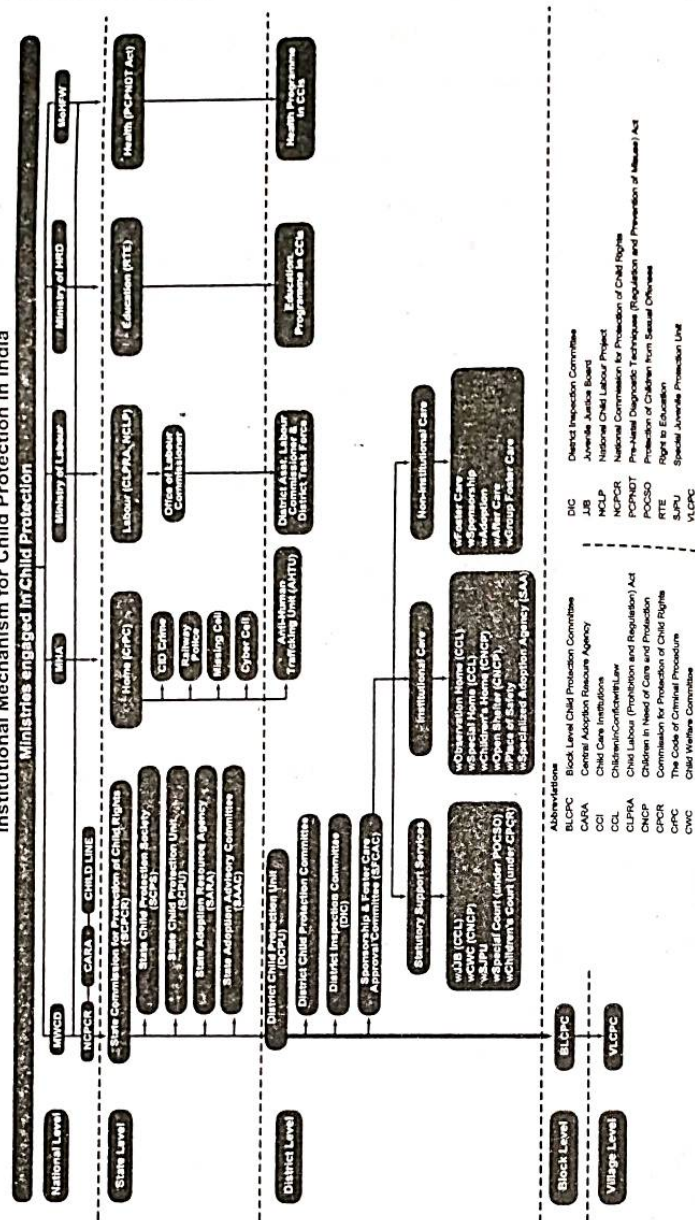
The Council, composed of 47 Member States, provides a multilateral forum to address human rights violations and country situations. It responds to human rights emergencies and makes recommendations on how to better implement human rights on the ground.

The Council benefits from substantive, technical, and secretariat support from the Office of the High Commissioner for Human Rights (OHCHR).

3:11:1 Functions of The Council

- ✦ Serves as an international forum for dialogue on human rights issues with UN officials and

Institutional Mechanism for Child Protection in India



mandated experts, states, civil society, and other participants;

- ✦ Adopts resolutions or decisions during regular sessions that express the will of the international community on given human rights issues or situations. Adopting a resolution sends a strong political signal which can prompt governments to take action to remedy those situations;
- ✦ Holds crisis meetings known as **special sessions** to respond to urgent human rights situations, 36 of which have been held to date;
- ✦ Reviews the human rights records of all United Nations Member States via the **Universal Periodic Review**;
- ✦ Appoints the **Special Procedures**, independent human rights experts who serve as the eyes and ears of the Council by monitoring situations in specific countries or by looking at specific themes; and
- ✦ Authorizes commissions of inquiry and fact-finding missions, which produce hard-hitting evidence on war crimes and crimes against humanity.

3:11:2 Council Membership and Elections

The Human Rights Council consists of 47 Member States elected directly and individually by a majority of the 193 states of the UN General Assembly. Elections take place every year. Seats are equitably distributed among the five UN regional groups, with one-third of the members being renewed each year. Each member serves a three-year term. Membership is limited to two consecutive terms. As of December 2022, 123 of the 193 Member States of the United Nations have served as Council members.

Rotating membership of the Council reflects the UN's diversity and gives it legitimacy when speaking out on human rights violations in all countries.

Members commit to upholding human rights and are expected to cooperate fully with the Council. The General Assembly may vote to suspend a membership in the case of gross and systematic violations of human rights.

The Council has a **bureau** which consists of a **president** and four vice-presidents who represent each of the regional groups.

3:11:3 The Different Mechanisms and Entities of the Council

The Human Rights Council consists of different mechanisms and entities, as set out in the Council's '**Institution-building package**' (Resolution 5/1) of 2007. These include:

- ✦ The **Universal Periodic Review (UPR)**, a State-led mechanism that regularly assesses the human rights situations of all United Nations Member States.
- ✦ The **Special Procedures** are individuals or groups, not employed by the UN, who speak out on themes such as education, health, free speech, and human trafficking, as well as on country situations including Ukraine, DPRK, Eritrea, and Iran, among others.
- ✦ The **Advisory Committee** serves as the Council's "think tank," providing it with expertise and advice on thematic human rights issues.
- ✦ The **Complaint Procedure** allows people and organizations to bring human rights violations to the attention of the Human Rights Council.

3:12 U.N. Committee on the Rights of Children

The **Committee on the Rights of the Child (CRC)** is the UN body responsible for ensuring children can enjoy their human rights and live with dignity, respect and equality.

It is a body of 18 independent experts who monitor the implementation of the **Convention on the Rights of the Child** (the Committee is established under articles 43, 44 and 45) and its Optional Protocols - children in armed conflict; the sale of children, child prostitution and child pornography; establishing an international complaints procedure for violations of children's rights.

The Committee meets in Geneva and normally holds three sessions per year, for a period of three weeks in January, May-June and September. At each session, the Committee examines reports from approximately 10 State Parties, discusses issues in plenary with government delegations and issues concluding observations on how well each State under review adheres to the rights in the Convention.

All State parties that have ratified the Convention on the Rights of the Child have to submit regular reports to the Committee on how children's rights are being implemented in their country. States must report initially two years after they become party to the Convention and then every five years after that. The Committee examines each report and addresses its concerns and recommendations to the State Party through "concluding observations".

The **Office of the United Nations High Commission for Human Rights (OHCHR)**, in cooperation with NGOs and host governments, occasionally organises regional and sub-regional workshops to follow up on implementation of the Committee's and other treaty bodies' concluding observations.

The Committee also examines those reports from States who have ratified the Optional Protocols to the Convention on sale of children, children prostitution and child pornography; and children in armed conflict.

At its first session, in October 1991, the Committee adopted guidelines for State parties when they write initial reports.

As part of the Committee's review of a State, NGOs can submit alternative reports to give the Committee a different perspective and information on what's happening on the ground. This is a great way for advocates to get children's rights issues under the UN spotlight and put pressure on governments. All Alternative Reports are made available on the **CRIN library**. **Child Rights Connect** gives advice and assistance to NGOs wanting to submit an alternative report.

A working group of the Committee meets prior to each Committee session for a preliminary examination of reports received from States Parties, and to prepare the Committee's discussions with the representatives of reporting States. They meet with UN agencies and bodies, as well as some NGOs and National Human Rights Institutions who have submitted information.

The end result of this pre-session is a "list of issues" that the CRC will examine the State on during its review. The list of issues is intended to give the government a preliminary indication of the issues which the Committee considers to be priorities for discussion. It also gives the Committee the opportunity to request additional or updated information in writing from the

government prior to the session. This approach gives governments the opportunity better to prepare themselves for the discussion with the Committee, which usually takes place between three and four months after the working group.

The Committee occasionally publishes its interpretation of provisions of the Convention in the form of General Comments, sometimes following a Day of General Discussion debate. These are important as they are the Committee's latest thinking on a particular right, and allow the Convention on the Rights of the Child to evolve.

Once a year, at its September session, the Committee holds a Day of General Discussion (DGD) on a provision of the Convention on the Rights of the Child in order to issue more detailed recommendations to governments. Each year, children, NGOs and experts are invited to submit documents to inform the Committee's one-day debate with stakeholders (UN agencies, Committee Members, NGOs, academics, lawyers, children, etc). All submitted documents are posted on the CRIN Library.

Once a year, the Committee submits a report to the Third Committee of the UN General

Assembly, which also hears a statement from the CRC Chair. The General Assembly then adopts a resolution on the rights of the child. One can find all the resolutions in CRIN library.

3:13 Special Rapporteurs on Issues Related to Children

Special Rapporteurs are independent experts who are responsible for monitoring specific human rights. This monitoring system was established by the United Nations (UN) Commission on Human Rights and took over by the Human Rights Council within the Special Procedures mechanism. The Commission's mandate to establish such mechanisms was firmly recognized in the Economic and Social Council's Resolution 1235 (XLII) of 6 June 1967, which states that "The Commission on Human Rights may, in appropriate cases make a thorough study of situations which reveal a consistent pattern of violations of human rights and report, with recommendations thereon, to the Economic and Social Council."

Special Rapporteurs are appointed to examine the general human rights situation of a specific country or to study a specific thematic aspect of human rights at an international level. They are

nominated pursuant to resolutions adopted by the Human Rights Council, which must then be confirmed by another resolution adopted by the UN Economic and Social Council. Their mandate is officially granted for one year, renewable each year. However, the Special Rapporteurs with thematic mandates are nominated on the basis of a three-year mandate, on average.

In addition to the work of Special Rapporteurs, the UN system have created and mandated numerous international commissions of inquiry and fact-finding mission to investigate situations of serious violations of international humanitarian law and international human rights law, whether protracted or resulting from sudden events.

These international investigative mechanisms have been established by various UN bodies such as the Security Council, the General Assembly, the Human Rights Council (and its predecessor the Commission of Human Rights), the Secretary-General and the High Commissioner for Human Rights. They are now seen as an essential tool in the UN's response to such violations particularly in promoting accountability and combating impunity. The Office of the high Commission for Human Rights (OHCHR) provides guidance on

methodology and international standards to such investigative bodies and serves as the repository and institutional memory of their work.

Conclusion

In this Unit, Juvenile delinquency, Juvenile Justice and Protection of Children Act 2015, Right to Free and Compulsory Education Act 2009, The Protection of Children from Sexual Offences Act (POCSO) 2012, The Prohibition of Child Marriage Act 2006, Child Labour (Prohibition and Regulation) Act 1986, National and State Policies for Child Protection, Suppression of Immoral Traffic in Women and Girls Act 1956 (SITA), Child Protection System in India, The United Nations (UN) Human Rights Council, UN Committee on the Rights of Children and Special Rapporteurs on issues related to children were discussed in detail.

Review Questions:

I. Objective Type Questions

1. In Juvenile Justice Act, 2015, the offences committed by juveniles in conflict with laws are categorized into how many classes?

- (i) 1 ii) 2
(iii) 3 (iv) None of the above [Ans: (iii)]

2. Right to Free and Compulsory Education Act got implemented from the year
(i) 2005 (ii) 2009
(iii) 2010 (iv) 2011 [Ans: (iii)]
3. The Prohibition of Child Marriage Act, came into force from
(i) 2005 (ii) 2007
(iii) 2009 (iv) 2006 [Ans: (ii)]
4. Child Labour Prohibition and Regulation Act, 1986, defines 'Child' as any one below the age of _____
(i) 14 (ii) 15
(iii) 16 (iv) 18 [Ans: (ii)]
5. Which among the following statements is not true according to Immortal Traffic (Prevention) Act 1956?
(i) Prohibits running brothels
(ii) Prohibits prostitution in public places
(iii) Engaging in Prostitution is legally recognized
(iv) Declares sex work as illegal [Ans: (iv)]

II Short Answer Type Questions:

6. What do you mean by 'Juvenile delinquency'? State the casuses for delinquency. [Ans: 3:01:1 + 3:01:3]
7. State the key provisions of the 'Juvenile Justice Act, 2015'. [Ans: 3:02:1]

8. State the Salient features of 'The Right to Education Act (2009)'. [Ans: 3:03]
9. State the Salient features of the 'Prohibition of Child Marriage Act, 2006'. [Ans : 3:05:1]
10. State the significance of Tamilnadu State Policy for Children, 2021. [Ans: 3:07:3]
11. State the objectives and responsibilities of VISHAKA Committee. [Ans: 3:08:4 + 3:08:5]
12. Write briefly about 'Suppression of Immoral Traffic in Women and Girls Act, 1956'. [Ans: 3:09 + 3:09:1]
13. Depict the child protection system in India with a flow chart. [Ans : 3:10]
14. Write the functions of the 'UN Human Rights Council'. [Ans : 3:11 + 3:11:1]
15. Write about the 'Special Rapporteurs on Issues Related to Children'. [Ans : 3:13]

III Essay Type Questions

16. Discuss the meaning, definition, causes of 'Juvenile Delinquency' and the measures that could be taken to reform the delinquents. [Ans: 3:01:1 + 3:01:2 + 3:01:3 + 3:01:4]
17. Explain the 'Juvenile Justice Act, 2015' and its important features. [Ans: 3:02 + 3:02:1 + 3:02:2 + 3:02:3]